



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 26 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E-11115

EXPIRATION DATE: December 31, 1994

1. GRANTEE: The United States Department of Energy, Washington, DC.
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time transportation in commerce of a Gammacell 220 high dose rate research irradiator containing not more than 444 TBq (12,000 Ci) of Cobalt-60 pellets or solid metal contained in special form capsules is in a Type B packaging identified in U.S. Certificate of Competent Authority No. USA/6125/B(U), Revision 9, which is only authorized for use in import and export shipments. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.416(c).
5. BASIS: This exemption is based on the Department of Energy's application dated August 8, 1993, submitted in accordance with 49 CFR 107.103 and the public process thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Radioactive material, special form, n.o.s.	Class 7	UN 2974	None

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING -

1. The import and export restriction of 49 CFR 173.416(c) is waived. The authorized packaging is the Nordion International Gammacell-220 irradiator as described in U.S. Certificate of Competent Authority USA/6125/B(U), Revision 9 (See Appendix A). This certificate, which is a revalidation of Canadian

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Certificate of Competent Authority No. CDN/2013/B(U), currently only authorizes the use of this packaging for use in import and export shipments.

2. The packaging shall be prepared in accordance with the procedures referenced in U.S. Certificate of Competent Authority USA/6125/B(U), Revision 9, and as described in the Department of Energy's letter dated August 27, 1993.

- b. MARKING - The package shall be marked in accordance with both 49 CFR Part 107, Subpart B, Appendix B and Certificate of Competent Authority No. USA/6125/B(U), Revision 9.

8. SPECIAL PROVISIONS:

a. The motor carrier used to transport the irradiator from Argonne to its destination must have a "Satisfactory" or "Conditional" safety rating as assigned by the Office of Motor Carrier Field Operations, Federal Highway Administration.

b. The irradiator, owned by the Department of Energy, shall be transported from Sandia National Laboratory in Albuquerque, NM to the National Cancer Institute in Bethesda, MD.

c. The shipper using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

d. The state agency responsible for licensing the possession and use of the irradiator or the Governor's appointed designee of each state that the package transits shall be notified in advance of the time of the planned movement. The special condition in paragraph 4 of Certificate USA/6125/B(U), Revision 9, is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

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- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA